

**Smt. Shobha D/O Gulappa Tirlapur W/O S ... vs Shri. S Manohara
S/O Shiuvaraju on 22 September, 2023**

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NC: 2023:KHC-D:11184
CP No. 100121 of 2023

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 22ND DAY OF SEPTEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100121 OF 2023

BETWEEN:

SMT. SHOBHA D/O. GULAPPA TIRLAPUR
W/O. S MANOHAR
AGE. ABOUT 33 YEARS, OCC. HOME MAKER,
R/O. VADDARA COLONY VILLAGE
KIRUGAVALU HOBLI, MALAVALLI TALUK,
MANDYA DISTRICT.

NOW AT:-

C/O. RATNA GULAPPA TIRLAPUR (METI)
ANGANAVADI TEACHER,
R/O.KIRESUR VILLAGE, POST. HEBSUR,
TQ. HUBBALLI, DIST. DHARWAD.

...PETITIONER

Digitally
signed by
SHIVAKUMAR

SHIVAKUMAR HIREMATH
HIREMATH

Date:
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(BY SMT. PADMAJA S. TADAPATRI, ADVOCATE)

AND:

SHRI. S MANOHARA S/O. SHIUVARAJU
AGE. ABOUT 42 YEARS, OCC. FOREST DEPT. GUARD
R/O. VADDARA COLONY VILLAGE,
KIRUGAVALU HOBLI, MALAVALLI TALUK,
MANDYA DISTRICT.

...RESPONDENT

(BY SRI. VIJAY MALALI, ADVOCATE)

THIS CIVIL PETITION FILED U/SEC.24 OF CPC, 1908, PRAYING
TO PASS AN TRANSFERRING THE G AND W NO. 09/2023 PENDING
ON THE FILE OF SENIOR CIVIL JUDGE AND CHIEF JUDICIAL

MAGISTRATE MANDYA TO PRINCIPAL FAMILY COURT HUBBALLI, IN
THE INTEREST OF JUSTICE AND EQUITY.

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THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS
DAY, THE COURT MADE THE FOLLOWING:
ORDER

The present petition is filed by the wife under Section 24 of the Code of Civil Procedure, 1908 (hereinafter referred to as 'CPC') seeking for transfer of G & WC No.9/2023 pending on the file of the Senior Civil Judge and CJM, Mandya to the Prl. Judge, Family Court, Hubballi.

2. The relevant facts necessary for consideration of the present petition are that the marriage between the parties was solemnized on 13.11.2009, consequent to which, the parties have resided together and a son is born to them from the said wedlock also is currently aged 13 years. It is further forthcoming from the record that from about 4 years, the parties have been living separately by making a partition of the residential house and the son has been staying along with the petitioner and pursuing his education at Mandya. The respondent/husband instituted M.C.No.48/2021 under Section 13(1)(ib) of the Hindu NC: 2023:KHC-D:11184 Marriage Act, 1955 on the file of Senior Civil Judge, Malavalli, seeking for decree of divorce.

3. It is the case of the petitioner that although she was living at Malavalli, for the purpose of education of their child, due to various factors, she decided to reside along with her mother who is working as Anganawadi teacher at Kiresur, post: Hebsur, Taluk Hubballi.

4. It is also forthcoming from the record that M.C.No.48/2021 was transferred to the Prl. Judge, Family Court, Hubballi consequent to the order passed by a Co- ordinate Bench of this Court dated 12.04.2023 passed in C.P.No.100021/2023. During the pendency of the said proceedings, the respondent/husband has filed G & WC No.9/2023 on the file of the Prl. Senior Civil Judge and CJM, Mandya. Hence, the present petition is filed.

5. In view of the fact that this Court has already transferred M.C.No.48/2021 to the Prl. Judge, Family Court, Hubballi, it is just and expedient that the relief sought for in the present petition be granted.

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6. In view of the aforementioned, the following order is passed:

ORDER

- i) The petition is allowed;
- ii) G & WC No.9/2023 pending on the file of the Senior Civil Judge and CJM, Mandya shall stand transferred to the Court of Prl. Judge, Family Court, Hubballi.
- iii) Both the parties shall appear before the transferee Court on 25.10.2023 without the requirement of any further notice being issued in this regard;
- iv) The transferee Court, upon transfer, shall proceed further in accordance with law;
- v) All contentions of the parties are left open.

(Sd/-) JUDGE NAA